TENTATIVE RULINGS

LAW & MOTION

DEPT C25

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar**. Do not call the department to verify if you should appear or not. Please read below for the information. **If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by **12:00 p.m**. the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling**.

June 16, 2026
10:00 AM

If you want a transcript, you must provide your own court reporter.

#	Case Name	Tentative
101	**Thayer vs. Newrez LLC** **24-01428812**	Demurrer to Second Amended Complaint Defendants First American Title Company ("FATCO") and First American Title Insurance Company ("FATIC") (together, "Defendants") demur to all four causes of action in Plaintiff Thomas Thayer's ("Plaintiff") Second Amended Complaint ("SAC"). The demurrer is sustained with leave to amend as to the first, second and fourth causes of action. The demurrer is overruled as to the third cause of action. First Cause of Action for Quiet Title The elements of quiet title include: (1) plaintiff's title and its basis (2) the existence of adverse claims to that title. (Orcilla v. Big Sur, Inc. (2016) 244 Cal.App.4th 982, 1010.) The SAC alleges that Plaintiff acquired title to the Property by purchasing it at a public auction. (SAC ¶

		2.) The SAC alleges that there is a cloud on the title to the Property due to an outstanding home equity line of credit ("HELOC"), which was supposed to have been paid off in 2006 when a new first with Option One Mortgage was recorded. (SAC ¶ 2.) However, the HELOC was never frozen, and the previous owners of the Property (the Kichlines) continued to borrow against the loan, such that there is now an outstanding balance of more than $100,000. (SAC ¶ 2.) Plaintiff alleges that FATCO issued a check to pay off the loan and that FATIC insured the new first mortgage in favor of Option One. (SAC ¶ 2.) Plaintiff alleges that FATCO and FATIC are included in the quiet title cause of action because they "could pay off any beneficial interests, hold the Note for itself, or even issue of a release of obligation." (SAC ¶ 24.) Defendants contend that neither Defendant FATCO/Escrow nor FATIC/Title Insurer are asserting any interest in the Property, nor do these defendants have any obligation to reconvey the subject DOT. In opposition, Plaintiff contends that "Code of Civil Procedure section 762.060(b) permits joinder of any person who 'may appear of record' to have a claim. What First American says today can change tomorrow. Due to First American's negligence, it could very well payoff the loan and reconvey it." (Oppn. at 14:23-25.) Plaintiff has cited no authority for the proposition that a party may be sued for quiet title merely because they could pay off a loan. Overall, the SAC does not include any allegations that Defendants currently have any adverse claims to title to the Property. Accordingly, the demurrer to the first cause of action is SUSTAINED with leave to amend. Second Cause of Action for "Damages" (Negligence)

		Defendants demur to the second cause of action titled "damages" on the grounds that damages are a form of relief and not a cause of action. In opposition, Plaintiff contends that the cause of action is a properly pled cause of action for negligence. The elements of a cause of action for negligence are well established. They are '(a) a legal duty to use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury.'" (Ladd v. County of San Mateo (1996) 12 Cal.4th 913, 917.) Here, although Plaintiff contends that all elements have been pled, there are no allegations establishing that Defendants owed a duty of care to Plaintiff or that the duty of care was breached. The only allegation specific to Defendants is that they failed to pay off the loan and refused to issue any reconveyance. (SAC ¶ 35.) Accordingly, the demurrer to the second cause of action is SUSTAINED with leave to amend. Third Cause of Action for Declaratory Relief Defendants contend that Plaintiff's third cause of action for declaratory relief is duplicative of the first cause of action for quiet title. In opposition, Plaintiff contends that the two causes of action are distinct, as "Quiet title perfects title as against specific adverse claims. (Code Civ. Proc. § 760.020.) Declaratory relief establishes a forward-looking declaration of the parties' rights and duties on a set of facts. (Code Civ. Proc. § 1060.)" (Oppn at 16:15-17.) As the demurrer is sustained to the first cause of action, there are no longer duplicative causes of action. As to the merits of this cause of action, "[a] general demurrer is usually not an appropriate method for

		testing the merits of a declaratory relief action, because the plaintiff is entitled to a declaration of rights even if it is adverse to the plaintiff's interest." (Qualified Patients Assn. v. City of Anaheim (2010) 187 Cal.App.4th 734, 751.) As recently explained by the Court in Nede Mgmt., Inc. v. Aspen American Ins. Co. (2021) 68 Cal.App.5th 1121, this rule dates back to Maguire v. Hibernia Savings & Loan Soc. (1944) 23 Cal.2d 719, wherein the court held that C.C.P.§1060 "contains no suggestion that the pleader must allege facts entitling him to a favorable declaration." (Nede Mgmt., supra, 68 Cal.App.5th at 1130, citing Maguire, supra, 23 Cal.2d at 730. Accordingly, the demurrer to the third cause of action is OVERRULED. Fourth Cause of Action for Tort of Another Under the "tort of another" doctrine, a person who through the tort of another has been required to act in the protection of his interests by bringing or defending an action against a third person is entitled to recover compensation for the reasonably necessary loss of time, attorney's fees, and other expenditures thereby suffered or incurred. (Prentice v. North Am. Title Guaranty Corp., Alameda Division (1963) 59 Cal.2d 618, 620; Electrical Electronic Control, Inc. v. Los Angeles Unified School Dist. (2005) 126 Cal.App.4th 601, 617.) The doctrine does not apply to the ordinary two-party suit. It is for use in cases where the defendant has wrongfully made it necessary for a plaintiff to sue a third person. (See Prentice at 620-21.) Defendants demur on the grounds that this is a remedy and not a cause of action, and that Plaintiff has not demonstrated any theory of liability against Defendants.

		In opposition, Plaintiff contends that "[t]he Fourth Cause of Action incorporates the underlying allegations and alleges that, as a result of FATCO's negligence in 2006 and First American's subsequent refusal to issue a release, Plaintiff was forced to bring this action to clear his title." (Oppn at 17:13-16.) As Plaintiff has not sufficiently pled a negligence cause of action against Defendants, the tort of another claim also fails. The demurrer to the fourth cause of action is SUSTAINED with leave to amend. Plaintiff shall have 15 days leave to amend the complaint. Defendants' requests for judicial notice are GRANTED pursuant to Evidence Code §452(h). (See also, Fontenot v. Wells Fargo Bank (2011) 198 Cal.App.4th 256, 265.) Plaintiff's requests for judicial notice are DENIED. There is no indication that the documents are court records, or any other category of documents judicially noticeable pursuant to the Evidence Code. Rather, the documents are described in the request as "business records of First American." Defendants to give notice
104	**Saucedo vs. Preferred Roofing LLC** **25-01494949**	1. Motion to Be Relieved as Counsel of Record Joshua I. White and Preetpal S. Toor seek an order relieving them as counsel of record for Plaintiff Rodrigo Serrato Saucedo. Motions to be relieved as counsel pursuant to Code of Civil Procedure § 284(2) are governed by California Rules of Court, Rule 3.1362.

		All the requirements of California Rules of Court, Rule 3.1362 have been met, and the Declaration of Attorney Preetpal S. Toor appears to demonstrate good cause for granting the motion based on the allegations that: a) There has been lack of communication from the client; and b) There is an irreconcilable disagreement regarding case strategy and legal advice between the client and attorneys. Additionally, all required judicial counsel forms (MC-051, MC-052, and MC-053) relating to the notice of motion, declaration and proposed order have been utilized and seem to be properly served. [CRC 3.1362(a)-(d).] However, it is unclear whether this Court has acquired knowledge of the Plaintiff Client's address. When the motion was filed on 4/1/2026, Attorney indicated Plaintiff Client would be "personally served". However, thereafter, documents were filed indicating that Plaintiff Client was served by mail at two different addresses. (ROAS 37, 39.) Although the "confirmation of last known address" portion of the declaration are left blank (ROA 27) it appears that a skip trace indicates 201 S MAGNOLIA AVE APT 43, ANAHEIM, CA 92804 is the most recent address for Plaintiff. (ROA 41.) Declaration of Due Diligence (ROA 41) indicates that the server was not able to serve Plaintiff physically. As such, on 5/13/2026, Plaintiff Client was served by mail at two addresses:

		1) 111 S HEARTWOODWAY, ANAHEIM, CA92801 2) 201 S MAGNOLIA AVE APT 43, ANAHEIM, CA 92804 (ROAs 37, 39) Counsel is ordered to appear and provide information to the Court as to Plaintiff Client's last known address, and what steps (other than a skip trace), Counsel has taken to acquire that information. To the extent the Court is satisfied that it has acquired Plaintiff Client's address, it will grant the motion. 2. Case Management Conference
105	**JPMorgan Chase Bank, N.A. vs. LJT Holdings II LLC** **25-01514141**	Motion to Be Relieved as Counsel of Record John P. Swenson, Janae L. Hill, and Arden Burstein ("Moving Counsel") move to be relieved as Counsel of Record for Defendant LJT Holdings II, LLC. The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case. (California Rules of Court, rule 3.1362(d).) Proof of service of the moving papers must be filed no later than five court days before the hearing date. (California Rules of Court, rule 3.1300(c).) Although Moving Counsel provides that the moving papers were served on the client by mail, the proof of service attached to the moving papers does not reflect such service. Moving Counsel is ordered to file proof of service of the moving papers on the client. Said proof of service

		to be filed no later than nine (9) court days before the continued hearing date of **July 28, 2026, at 10:00 AM**. Moving party to give notice.
106	**Safavi vs. Ghadiri** **25-01522424**	1. Motion to Expunge Lis Pendens 2. Case Management Conference Defendant, Nasrin Ghadiri ("Defendant"), moves for an order expunging the Notice of Pendency of Action ("Lis Pendens") recorded by Plaintiff and approved on April 14, 2026. Opposition was filed under ROA 74, but the opposition does not include an analysis of the merits. Nevertheless, the Court has reviewed this case on the merits. Initially, Defendant filed a proof of service indicating that Plaintiff was served with the moving papers by electronic service on April 20, 2026. Both Plaintiff and Defendant are self-represented. California Rules of Court, rule 2.253(b)(2) provides that "[s]elf-represented parties or other self-represented persons are exempt from any mandatory electronic filing and service requirements adopted by courts under this rule and Code of Civil Procedure section 1010.6." Additionally, "[i]n civil cases involving both represented and self-represented parties or other persons, represented parties or other persons may be required to file and serve documents electronically; however, in these cases, each self-represented party or other person is to file, serve, and be served with documents by non-electronic means unless the self-represented party or other person affirmatively agrees otherwise." (California Rules of Court, rule 2.253(b)(3), emphasis added.) "An unrepresented party may consent to receive electronic service." (Code Civ. Proc. §1010.6(c)(2).) Express consent to electronic service may be given by either (1) serving a notice on all parties and filing the

		notice with the court, or (2) "[m]anifesting affirmative consent through electronic means with the court or the court's electronic filing service provider, and concurrently providing the party's electronic address with that consent for the purpose of receiving electronic service. The act of electronic filing shall not be construed as express consent." (Code Civ. Proc. §1010.6(c)(3)(i)-(ii).) California Rules of Court, rule 2.251(b) sets forth similar ways in which a party may agree to accept electronic service. Defendant's declaration provides that both parties agreed to electronic service. (Declaration of Nasrin Ghadiri, ¶ 2.) Plaintiff stated in Court that the parties have agreed to electronic service. As such, the Court will consider this motion. Defendant is ORDERED to comply with Code of Civil Procedure section 1010.6(c)(3) and California Rules of Court, rule 2.251(b) to establish express consent for electronic service. Merits Defendant contends that the notice of pendency of action ("lis pendens") must be expunged under Code of Civil Procedure section 405.31 because the Complaint does not assert any claim affecting title to or possession of real property that is the subject of the lis pendens, and thus, that the Complaint does not contain a "real property claim" within the meaning of Code of Civil Procedure section 405.4. " 'A lis pendens is a recorded document giving constructive notice that an action has been filed affecting title to or right to possession of the real property described in the notice.' [Citation.]" (Kirkeby v. Superior Court (2004) 33 Cal.4th 642, 647 ("Kirkeby").) "At any time after notice of pendency of action has been recorded, any party, or any nonparty with an interest in the real property affected thereby, may apply to the court in which the action is pending to expunge the notice. . .. Evidence or declarations may be filed with the motion to

		expunge the notice. The court may permit evidence to be received in the form of oral testimony and may make any orders it deems just to provide for discovery by any party affected by a motion to expunge the notice. The claimant shall have the burden of proof under Sections 405.31 and 405.32." (Code Civ. Proc. § 405.30.) A lis pendens may be expunged if the action does not contain a real property claim or the claimant fails to establish the probable validity of the real property claim. (De Martini v. Superior Court (2024) 98 Cal.App.5th 1269, 1275.) For a motion to expunge lis pendens, the court goes through a two-step analysis. First, the court looks to see if the complaint contains a property claim. This requires plaintiff to prove the existence of a real property claim based on the allegations in the complaint. (Code Civ. Proc. § 405.31; Urez Corp. v. Superior Court (1987) 190 Cal.App.3d 1141, 1149.) This analysis is akin to what is reviewed on a demurrer, and the court is to consider only evidence that is judicially noticeable and assumes facts alleged in the complaint to be true. (Park 100 Investment Group II, LLC v. Ryan (2009) 180 Cal.App.4th 795, 808-809; BGJ Associates v. Superior Court (1999) 75 Cal.App.4th 952, 956, 958.) An action that affects ownership of disputed property is a proper action for a lis pendens notice, as is an action that would affect or impair the owner's right of possession of real property. (Urez Corp. v. Superior Court (1987) 190 Cal.App.3d 1141, 1145.) An action for money damages alone will not support a lis pendens. (Ibid.) Code of Civil Procedure section 405.31 provides, in pertinent part: "the court shall order the notice expunged if the court finds that the pleading on which the notice is based does not contain a real property claim. The court shall not order an undertaking to be given as a condition of expunging the notice where the court finds the pleading does not contain a real property claim." The burden is on the party opposing a motion to expunge lis pendens to show the existence of a real property claim.

		(Code Civ. Proc. § 405.30; Kirkeby, supra, 33 Cal.4th at p. 647.) Second, the court evaluates the merits of the claim, which involves an evidentiary hearing. (Kirkeby, supra, 33 Cal.4th at p. 651; BGJ, supra, 75 Cal.App.4th at pp. 956-957.) Under Code of Civil Procedure section 405.32, a claimant must establish the probable validity of the real property claim by a preponderance of the evidence. (Code Civ. Proc. § 405.32; Howard S. Wright Const. Co. v. Superior Court (2003) 106 Cal.App.4th 314, 317.) At issue is the first step. The Complaint asserts causes of action for breach of contract and promissory and constructive fraud and seeks only money damages. It is alleged that the parties entered into an oral agreement whereby Plaintiff agreed to perform a complete renovation of Defendant's residential property located in Mission Viejo, California in exchange for a promise to sell the subject property immediately after renovation, obtain a new loan, purchase another house for renovation, and transfer of one-half ownership of that new property to the Plaintiff. (Complaint, Attachment BC-1 at p. 1, Attachment BC-2 at p. 1, Attachment BC-4.) The allegations of the Complaint indicate that Plaintiff does not have an ownership or possessory interest in the Mission Viejo property, and that this action does not affect ownership of the Mission Viejo property, or impair Plaintiff's right of possession of the Mission Viejo property. Instead, Plaintiff alleges a promise to sell the Mission Viejo property and purchase a new property from which one-half ownership of the new property would be transferred to Plaintiff. Additionally, Plaintiff has not opposed the motion and has not proven the existence of a real property claim based on the allegations in the Complaint. Based on the foregoing, the Complaint does not contain a "real property claim" within the meaning of Code of Civil Procedure section 405.4. Defendant's motion to

		expunge pendency of action ("lis pendens") is GRANTED. Court to give notice
107	**Lorenzini vs. Revolashion, LLC** **26-01547153**	Motion to Quash Service of Summons Defendants Ilona Alidzaeva and Alexandre Lamothe ("Defendants") move for an order quashing service of summons and dismissing action for lack of personal jurisdiction as to Revolashion, LLC ("Revolashion") or, in the alternative, staying or dismissing the action based on forum non conveniens. To the extent Defendants' Motion is made on behalf of Revolashion, it is improper. Defendants filed their Motion in pro per and they cannot represent the entity defendant. (See CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1145 ["a corporation, unlike a natural person, cannot represent itself before courts of record in propia persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney."]; see also Caressa Camille, Inc. v. Alcoholic Beverage Control Appeals Bd. (2002) 99 Cal.App.4th 1094, 1101-1102 [explaining that qualifications of the human representing an entity is of vital judicial concern and " 'the court is entitled to expect to be aided in resolution of the issues by presentation of the cause through qualified professionals rather than a lay person.' "].) To the extent the Motion seeks to quash service on the individual defendants for lack of personal jurisdiction, the Motion also lacks merit. Defendants concede that they reside in this state. Further, they filed an Answer to the Complaint on May 21, 2026, which constitutes a general appearance and makes them subject to this Court's personal jurisdiction. (Fireman's Fund Ins. Co. v. Sparks Construction, Inc. (2004) 114 Cal.App.4th 1135, 1145.)

		Defendants argue that this action should be stayed or dismissed on forum non conveniens grounds because Texas is a suitable alternative forum, the parties agreed that Texas law would govern their relationship, all payroll and tax records are Texas-based, and all witnesses with knowledge of the employment relationship reside in Texas, Florida, or Missouri, and not California. Defendants provide no argument or evidence showing that Texas is a suitable alternative forum for Plaintiff's claims. Further, the existence of a choice of law clause does not support Defendants' Motion, as California courts are capable of applying the laws of another state. (Animal Film, Inc. v. D.E.J. Productions, Inc. (2011) 193 Cal.App.4th 466, 475.) Lastly, while the location of evidence and witnesses is relevant to the forum non conveniens analysis, Defendants only argue that the payroll and tax records are Texas-based, not that they exist only in Texas and would be difficult to obtain in California. Further, their argument that no witnesses are located in California is belied by the fact that they both, along with Plaintiff, reside in this state. As a California resident, Plaintiff's choice of forum must not be disturbed " 'unless the balance is strongly in favor of the defendant.' " (EpicentRx, Inc. v. Superior Court (2025) 18 Cal.5th 58, 73.) Here, Defendants have not carried their burden to show that the balance tips strongly in their favor. In light of all the above, the Motion is DENIED. Moving party to give notice
108	**Lovato vs. Valencia** **24-01397472**	Motion for Leave to File First Amended Complaint The Motion for Leave to Amend brought by Plaintiff Brandon Lovato is GRANTED, pursuant to Code of Civil Procedure section 473.

		Pursuant to Code of Civil Procedure section 473, subdivision (a), the court may, "in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars…." (Code Civ. Proc., § 473, subd. (a).) "[T]he trial court has wide discretion in allowing the amendment of any pleading [citations], [and] as a matter of policy the ruling of the trial court in such matters will be upheld unless a manifest or gross abuse of discretion is shown." (Melican v. Regents of University of California (2007) 151 Cal.App.4th 168, 175.) "[T]he court's discretion will usually be exercised liberally to permit amendment of the pleadings." (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.) "The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (Ibid.) While there is authority which indicates that "even if a good amendment is proposed in proper form, unwarranted delay in presenting it may – of itself – be a valid reason for denial" (Eng v. Brown (2018) 21 Cal.App.5th 675, 707), a great deal of authority demonstrates that "[w]here no prejudice is shown to the adverse party, the liberal rule of allowance prevails." (Higgins v. Del Faro (1981) 123 Cal.App.3d 558, 564.) Additionally, "[i]t is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment." (Berman v. Bromberg (1997) 56 Cal.App.4th 936, 945; see also Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048.) Here, Plaintiff seeks leave to add a prayer for punitive damages, as well as related factual allegations, against Defendant Orange Team Los Angeles, Inc. Plaintiff's counsel explains that the basis for the amendment was not discovered until December 19, 2025, when Plaintiff's counsel took the deposition of Orange Team

		Los Angeles, Inc's PMQ. (Arias Decl. ¶¶ 3-4, 7.) The motion was filed in March 2026. (ROA 99.) Defendant Orange Team Los Angeles, Inc. opposes the motion on the grounds that amendment would be futile and Defendant would be prejudiced by allowing the amendment at this point in the proceedings. While it is true that leave to amend may be denied "where permitting an amendment would be futile" such as "where the amendment does not state a cause of action" (Singh v. Lipworth (2014) 227 Cal.App.4th 813, 828), "the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings." (Kittredge Sports. Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048; See also Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2024) ¶6:644 ["Ordinarily, the judge will not consider the validity of the proposed amended pleading in deciding whether to grant leave to amend. Grounds for demurrer or motion o strike are premature."]) As to prejudice, trial is nearly eight months away. While Defendant expresses concern that the amendment will expand the scope of litigation and require additional discovery, these concerns are present in virtually every case in which leave to amend is granted. Further, in light of the narrow scope of the amendment and a significant amount of time left before trial, the minimal prejudice to the defendant does not override the policy favoring amendment. Plaintiff shall file and serve the proposed First Amended Complaint within 10 days. Plaintiff to give notice.

109	**Cunningham vs. FCA US, LLC.** **24-01431302**	Motion for Bifurcation Defendant FCA US, LLC ("Defendant") moves for an order bifurcating trial with regard to plaintiffs Dana Lynn Cunningham and Cara Leigh Cunningham's ("Plaintiffs") claim for punitive damages, precluding Plaintiffs from introducing evidence of or otherwise referring to Defendant's financial condition unless and until Plaintiffs prove a prima facie case of liability for punitive damages, pursuant to Civil Code section 3295(d). Section 3295(d) provides, in relevant part: "The court shall, on application of any defendant, preclude the admission of evidence of that defendant's profits or financial condition until after the trier of fact returns a verdict for plaintiff awarding actual damages and finds that a defendant is guilty of malice, oppression, or fraud in accordance with Section 3294." "[I]n practice bifurcation under this section means that all evidence relating to the amount of punitive damages is to be offered in the second phase, while the determination whether the plaintiff is entitled to punitive damages (i.e., whether the defendant is guilty of malice, fraud or oppression) is decided in the first phase along with compensatory damages." (Holdgrafer v. Unocal Corp. (2008) 160 Cal.App.4th 907, 919.) Pursuant to section 3295(d), Defendant's Motion to Bifurcate is GRANTED. It is ORDERED that Plaintiffs shall be precluded from admitting evidence of Defendant's financial condition in the first phase of trial and shall not introduce such evidence unless and until Plaintiffs have established a prima facie case of their entitlement to punitive damages. Moving party to give notice
110	**Konkimalla vs. Bose** **21-01221950**	Motion to Strike or Tax Costs

		Plaintiff Harikrishna Madanaraj ("Plaintiff") moves pursuant to Code of Civil Procedure sections 1032 and 1033.5 and California Rules of Court, rule 3.1700(b) to strike all costs on the grounds that the Court struck the provision awarding costs in its March 19, 2026 Order. Defendants SURBHI BOSE as special administrator, personal representative, and executor of the ESTATE OF SANTANU BOSE, an individual, SURBHI BOSE as Trustee of the Bose Family Trust dated April 17, 2019, BOSE CAPITAL MARKETS, LLC ("Defendants") oppose the motion. First, the Court notes that the motion to strike or tax costs was timely filed pursuant to California Rules of Court, rule 3.1700, which states that "[a]ny notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum." (Cal. Rules of Court, rule 3.1700, subd. (b)(1).) Here, the Memorandum of Costs was filed and served on 03/20/2026. (ROA 223.) This Motion to Strike or Tax was filed and served on 04/06/2026. (ROA 233.) Next, Code of Civil Procedure section 1032 expressly states that "[e]xcept otherwise provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).) Importantly, "absent statutory authority, the court has no discretion to deny costs to the prevailing party." (Vons Cos., Inc. v. Lyle Parks Jr., Inc. (2009) 177 Cal.App.4th 823, 832 [internal quotations omitted].) Plaintiff argues that Defendants are not entitled to costs because the Court struck the verbiage "Defendants, as the prevailing parties herein, shall have the ability to seek recovery of their costs and attorneys' fees against Plaintiff in accordance with California Rules of Court, Rules 3.1700 and 3.1702." In this judgment, the Court did not determine that Defendants are not entitled to

		recover costs – it just declined to order that Defendants were entitled to costs and attorney fees. The Court finds that Defendants are the prevailing party as summary judgment was granted in their favor on the causes of action Plaintiff asserted against them. Moreover, Plaintiff has not presented statutory authority establishing that Defendants are not entitled to recover costs. Given these conclusions, the Court finds that Defendants are entitled to recover costs pursuant to section 1032. Code of Civil Procedure section 1033.5(a) sets forth allowable costs. Code of Civil Procedure section 1033.5(b) sets forth the costs that are not allowable. "An item not specifically allowable under subdivision (a) nor prohibited under subdivision (b) may nevertheless be recoverable in the discretion of the court if 'reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.'" (Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761, 774.) "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary." (Nelson v. Anderson (1999) 72 Cal.App.4th 111, as modified on denial of reh'g (June 14, 1999) [citing Ladas v. California State Auto. Assn. (1999) 19 Cal.App.4th 761, 774].) "On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (Ibid.) "The court's first determination, therefore, is whether the statute expressly allows the particular item, and whether it appears proper on its face." (Nelson v. Anderson (1999) 72 Cal.App.4th 111, as modified on denial of reh'g (June 14, 1999).) "If so, the burden is on

		the objecting party to show them to be unnecessary or unreasonable." (Ibid.) Here, Defendants seek the following costs: (1) $1,630 for filing and motion fees, (2) $150 for jury fees, (3) $2,165.35 for deposition costs, and (4) $353.53 for fees for electronic filing or service. Code of Civil Procedure section 1033.5(a)(1) expressly allows for "filing motion, and jury fees." (Code Civ. Proc., § 1033.5, subd. (a)(1).) The Court notes that while a jury trial did not take place, Defendants were still required to pay a nonrefundable fee for their jury demand and therefore a jury fee was a reasonably necessary costs of litigation. (Code Civ. Proc., § 631, subd. (b).) Section 1033.5(a)(3) expressly allows the prevailing party to recover costs related to "[t]aking video recording, and transcribing necessary depositions, including an original and one copy of those taken by the claimant and one copy of depositions taken by the party against whom costs are allowed, "[f]ees of a certified or registered interpreter for the deposition of a party or witness who does not proficiently speak or understand the English language, and "[t]ravel expenses to attend depositions." (Code Civ. Proc., § 1033.5, subd. (a)(3).) Similarly, section 1033.5(a)(14) expressly allows for "fees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents." Given the above, section 1033.5 expressly allows for all costs sought by Defendants. Plaintiff has not carried his burden to establish that the costs were unnecessary or unreasonable. The Motion is DENIED in its entirety.

		Defendants to give notice
11	**Armas vs. Costco Wholesale Corporation** **24-01421908**	Motions for Sanctions Plaintiff ROSALIDA SANCHEZ ARMAS (hereinafter "Plaintiff") will and hereby does move the Court for an order: 1. Imposing monetary sanctions against Defendant COSTOCO WHOLESALE CORPORATION (hereinafter "Defendant") and their attorney of record JULIAN SMITH, ESQ., STEPHEN M. HARPER ESQ. AND McCUNE & HARPER, LLP pursuant to Code of Civil Procedure §128.7, §128.5 and California Rule of Court § 2.30 2. Awarding monetary sanctions in the amount of $18,350.00 to compensate for the mediation expenses. Motion is DENIED. Here, the bad acts MP complains about are: · Filing a Case Management Statement representing to the Court that they were interested in mediation and would participate in alternative dispute resolution. · Signing a Joint Stipulation to Continue Trial Misrepresenting to the Court the Basis for the Trial Continuance · Two business days prior to mediation notifying Plaintiff's counsel that Defendant would not be making an offer at the mediation. (See Declaration of Attorney Anastasia Gkogka.) However, none of the above alleged conduct supports sanctions pursuant to CCP§§128.5 or 128.7, or CRC 2.30.

		Plaintiff attempts to paint the picture that Defendant wholly failed to participate in mediation, which has caused a delay in the case. However, Defendant presents evidence that Defendant participated in the mediation. (See Declaration of Sith¶3; Declaration of Harber¶3.) Plaintiff also suggests that Defendant filed a CMC statement indicating a willingness to mediate, and a stipulation to continue trial based on the need to mediate, which were inaccurate. That is, Plaintiff suggests that Defendant was not interested in meaningfully mediating at all, but rather, sought mediation to delay the case. However, indicating a willingness to voluntarily mediate on a CMC is not grounds for sanctions. Also, the Stipulations and Orders herein indicate a need for discovery, not a need to complete mediation, as the basis for trial continuance. (See ROAS 34, 44.) Defendant to give notice.
12	**Bunker Hill Apartments, LLC vs. GMS Group Inc.** **25-01505195**	Motion for Order to Deposit Escrow Funds with the Court Plaintiffs Bunker Hill Apartments LLC and Tony Holder ("Plaintiffs") move for an order directing that escrow funds currently held by La Costa Escrow, Inc. ("La Costa") in the amount of approximately $958,843.27 be deposited with the Clerk of the Orange County Superior Court. Plaintiffs' Notice of Motion references Code of Civil Procedure sections 386, 386.1, and 386.5, which are interpleader statutes. Section 386.5 provides that a mere stakeholder may apply to the Court for an order discharging him or her from liability upon deposit with the Clerk of the Court the amount in dispute. These sections do not apply, as Plaintiffs are not the stakeholders here.

		Plaintiffs also move pursuant to Code of Civil Procedure section 572. That section provides: When it is admitted by the pleadings, or shown upon the examination of a party to the action, that he or she has in his or her possession, or under his or her control, any money or other thing capable of delivery, which, being the subject of litigation, is held by him or her as trustee for another party, or which belongs or which is due to another party or which should, under the circumstances of the case be held by the court pending final disposition of the action, the court may order the same, upon motion, to be deposited in court or delivered to such party, upon those conditions that may be just, subject to the further direction of the court. This action involves the sale of real property by Plaintiffs to GMS Group Inc. ("GMS"). Plaintiffs allege that they relied upon a fabricated proof of funds in accepting GMS's purchase offer, but after GMS failed to close escrow, Plaintiffs lawfully canceled the purchase agreement. Plaintiffs argue that the escrow funds currently held by La Costa in the amount of approximately $958,843.27 should be deposited with the Court because La Costa is facing conflicting demands on the funds, the funds were tendered after default and cancellation, and the underlying sale was induced by fraud. Plaintiffs argue that they are not seeking a prejudgment writ of attachment, and they are instead seeking to preserve the specific subject matter of this dispute. The Court finds that Plaintiffs' arguments have no merit. Under section 572, it is not enough that a stakeholder be facing conflicting claims to funds to support an order to deposit the funds with the Court. Instead, Plaintiffs must show that La Costa is holding the funds as trustee for another party, the funds are due to another party, or the funds should under the circumstances be held by the Court pending final disposition of the action. Plaintiffs have set forth no

		evidence showing that La Costa is acting as any party's trustee. Further, Plaintiffs have not demonstrated that the funds are due to them or any other party. The purchase agreement attached to the Complaint provides that Plaintiffs as the sellers have the right to cancel but also provides that they "shall authorize the return of Buyer's deposit, except for fees incurred by Buyer." Thus, to the extent Plaintiffs' Motion is based on their own entitlement to the funds held by La Costa, they have failed to carry their burden. Moreover, the fact that Plaintiffs claim over $1.27 million in documented losses unrelated to the escrow funds does not support their Motion, as Plaintiffs impliedly concede that such damages cannot be the basis for deposit of the funds held by La Costa. While the circumstances of this action may warrant the funds being held by the Court pending final disposition of the action, the issue is more suited for disposition pursuant to La Costa's motion to interplead the funds, which was filed on May 8, 2026, as La Costa is the party with actual standing under the interpleader statutes. Based on all the above, the Motion is DENIED. Moving party to give notice